

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

WENJING MITSCHA,

Petitioner

VS.

ANDREW EDWARD MITSCHA,

Respondent

) Case Number: FDV-25-818435

) Hearing Date: April 28, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: DONNA PETRE

OTHER REVIEW HEARING

TENTATIVE RULING

The parties are ordered to appear. The parties may appear in person in Department 404 or remotely by Zoom Video. If a party chooses to appear by video, that party must abide by the Notice and Instructions for Remote Appearance in San Francisco Family Court set forth above.

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

A. Procedural History

- 1) On September 3, 2025, the Respondent Andrew Mitscha filed a Request for Order for a Modification of the Domestic Violence Restraining Order issued against him so that he would be allowed unsupervised visitation with his son Edward Mitscha (02/06/2022) on Saturdays from 8:00 a.m. to 6:00 p.m.
- 2) On October 13, 2025, the parties appeared and were referred to Family Court Services for mediation with a return date of January 13, 2026.
- 3) On December 30, 2025, the Mother fled a Memorandum of Points and Authorities stating that pursuant to an order after hearing of her Domestic Violence Restraining Order Request, dated

December 18, 2024, the Father is to have professional supervised visits with his son for one hour in San Francisco every two weeks and that he was to pay 100% of the cost. On November 21, 2025, the Mother alleges that a Criminal Protective Order was issued. She alleges that this order prohibits all communication between her and the Father so that the “peaceful contact” exception for court ordered visitation in the Domestic Violence Restraining Order would violate the Criminal Protective Order and as such, she requests that the Domestic Violence Restraining Order be amended to remove the exception for peaceful contact.

4) A hearing was held on January 13, 2026, and at its conclusion the court issued the following orders:

- a. All communications between the parents through Talking Parents is suspended. Father may communicate with Petitioner’s counsel via email regarding family law matters
- b. Father shall enroll in and attend the anger management class as previously ordered
- c. The supervised visitation orders shall continue. Father shall professionally supervised visitation through Rally Visitation Services for one hour every other weekend subject to Rally’s availability. Father shall pay all fees for Rally. Rally shall facilitate communication with the parties to schedule the visitation.
- d. Mother’s counsel shall mail and email any relevant previous orders to Father to ensure he has the orders including the 11/6/24 Amended Restraining Order and 8/12/2024 Order
- e. The Parties shall return for a review hearing on April 28, 2026, at 9:00 a.m.in Department 404.
- f. All prior orders not in conflict with these orders shall remain in full force and effect.

5) On April 13, 2026, the Father filed a Declaration with the Court stating that he is currently engaged in anger management classes and he would like his parents to be able to supervise his visits with his son.

6) On April 20, 2026, the Mother and her attorney filed Declarations regarding communications from the Father.

B. Findings and Order

1) This court has jurisdiction to make child custody orders in this case under the Uniform Child Custody Jurisdiction and Enforcement Act. A violation of this order may subject the party in

violation to civil or criminal penalties, or both. The country of habitual residence of the minor child(ren) is the United States.

- 2) **The parties are ordered to appear. The parties may appear in person in Department 404 or remotely by Zoom Video. If a party chooses to appear by video, that party must abide by the Notice and Instructions for Remote Appearance in San Francisco Family Court set forth above.**